BRENDAN NGEHSI NEWANFORBI
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FILED
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CLERK, U.S. DISTRICT COURT
NORTH DISTRICT OF CALIFORNIA
OAKLAND OFFICE

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol,

Defendant.

Case No. 4:26-cv-05953-ASK

FIRST AMENDED COMPLAINT FOR DAMAGES, DECLARATORY RELIEF, AND INJUNCTIVE RELIEF

(42 U.S.C. Section 1983)

(1) Fourteenth Amendment -- Substantive Due Process;
(2) Fourteenth Amendment -- Procedural Due Process;
(3) First Amendment -- Retaliation;
(4) Declaratory Relief

DEMAND FOR JURY TRIAL

INTRODUCTION

1. This action challenges the arbitrary denial of Plaintiff's request for U Nonimmigrant Status Certification (Form I-918, Supplement B) by Captain G. Serrato, Commander of the California Highway Patrol Dublin Area, on April 20, 2026.

2. The underlying facts are stark: On November 1, 2024, CHP Officers Santiago Meza-Gonzalez and Jose Melano subjected Plaintiff to a false arrest, fabricated material statements in a sworn report, and forced an involuntary blood draw through a warrant procured by

those fabrications -- all on Interstate 580 East in Livermore, Alameda County. CHP's own dashcam recording, in CHP's own custody, conclusively disproves every material representation in the sworn report. CHP itself conceded the arrest was unlawful by issuing a Penal Code section 851.6 Detention Certificate reclassifying the incident as "a detention only, not an arrest" based on "insufficient grounds for making a criminal complaint." No criminal charges were ever filed. The officers' underlying conduct is the subject of pending litigation in both state and federal court, as described in paragraph 11 below.

3. When Plaintiff exercised his rights under federal and California law to request U Visa certification of those qualifying crimes, Captain Serrato denied the request in a five-sentence boilerplate letter. That denial did not address the dashcam evidence. It did not address the section 851.6 Detention Certificate. It did not address the four documented fabrications. It did not apply the statutory rebuttable presumption of helpfulness. It did not identify which statutory element was unsatisfied. It provided no specific reasons, as required by law.

4. This complaint does not seek to relitigate the officers' underlying conduct. It challenges a discrete, subsequent constitutional violation: Captain Serrato's arbitrary refusal to perform a mandatory statutory duty -- a refusal that deprives Plaintiff of meaningful access to the immigration protections Congress and the California Legislature have established for victims of qualifying criminal activity.

JURISDICTION AND VENUE

5. This Court has subject matter jurisdiction under 28 U.S.C. section 1331 (federal question) because this action arises under the First and Fourteenth Amendments to the United States Constitution, as enforced through 42 U.S.C. section 1983.

6. Venue is proper in this District under 28 U.S.C. section 1391(b)(2) because a

substantial part of the events giving rise to the claims occurred in Alameda County, California. The certification request was directed to CHP Dublin Area, 4999 Gleason Drive, Dublin, Alameda County. The denial letter was issued from that office. The underlying qualifying criminal activity occurred in Livermore, Alameda County.

7. Assignment to the Oakland Division is proper under Civil Local Rule 3-2(c) because the events giving rise to this action occurred in Alameda County.

8. This Court has authority to grant declaratory relief under 28 U.S.C. sections 2201 and 2202 and injunctive relief under Rule 65 of the Federal Rules of Civil Procedure. Plaintiff's claims for prospective injunctive relief against Defendant Serrato in his official capacity are authorized by *Ex parte Young*, 209 U.S. 123 (1908).

PARTIES

9. Plaintiff BRENDAN NGEHSI NEWANFORBI is a natural person and resident of Milpitas, Santa Clara County, California. Plaintiff holds Alien Registration Number A-203-115-087. At the time of the events described herein, Plaintiff held a valid California Class A Commercial Driver's License and was employed as a commercial truck driver.

10. Defendant CAPTAIN G. SERRATO is sued in his individual capacity for damages and in his official capacity for prospective declaratory and injunctive relief. At all relevant times, Serrato served as Captain and Commander of the California Highway Patrol, Dublin Area, located at 4999 Gleason Drive, Dublin, CA 94568. In that capacity, Serrato functioned as a certifying official under California Penal Code section 679.10 and possessed the authority to execute, approve, or deny Form I-918, Supplement B, U Nonimmigrant Status Certifications. On April 20, 2026, acting under color of state law, Serrato denied Plaintiff's certification request.

RELATED ACTIONS

11. Plaintiff discloses the following related pending actions arising from the same underlying incident of November 1, 2024, or from the same April 20, 2026 U-Visa certification denial:

a. *Newanforbi v. Meza-Gonzalez, et al.*, Alameda County Superior Court Case No. 26CV168913. State tort action filed February 4, 2026, asserting claims for false imprisonment, battery, and violation of Civil Code section 52.1 (Tom Bane Civil Rights Act) against Officers Meza-Gonzalez and Melano and the State of California. This action does not name Captain Serrato and does not challenge the U-Visa certification denial.

b. *Newanforbi v. State of California, et al.*, United States District Court, Eastern District of California, Case No. 2:25-CV-01460-DC-CSK. Federal civil rights action filed May 27, 2025, asserting claims under 42 U.S.C. section 1983 for Fourth and Fourteenth Amendment violations and Monell liability against the State of California, CHP, and Officers Meza-Gonzalez and Melano. This action does not name Captain Serrato and does not challenge the U-Visa certification denial.

c. *Newanforbi v. California Highway Patrol, et al.*, Alameda County Superior Court Case No. 26CV191136. State petition for writ of mandate filed May 29, 2026, pursuant to Code of Civil Procedure section 1085, challenging the same April 20, 2026 denial of Plaintiff's U-Visa certification request that is at issue in this action. The petition names Captain G. Serrato in his official capacity as a respondent, together with the California Highway Patrol, Lieutenant Gary Paul, and Sergeant Eric Dutra. The state action seeks prospective relief in the form of a peremptory writ of mandate compelling reconsideration of the certification denial. A demurrer filed by the California Highway Patrol is set for hearing on August 28, 2026.

12. The state tort action (item a) and the federal civil rights action (item b) do not assert any claim against Captain Serrato and do not challenge the April 20, 2026 U-Visa certification denial. The state writ action (item c) names Captain Serrato in his official capacity only and challenges the same certification denial, but seeks prospective relief (a writ of mandate compelling reconsideration) against CHP and its officials in their official capacities. This action seeks retrospective monetary relief (compensatory and punitive damages) against Captain Serrato in his individual capacity for constitutional violations under 42 U.S.C. section 1983. The claims, defendants-in-capacity, and forms of relief are distinct. This action raises no claims that duplicate or overlap with the related actions.

FACTUAL ALLEGATIONS

A. The Underlying Qualifying Criminal Activity (November 1-2, 2024)

13. The following facts are established by CHP's own contemporaneous evidence -- specifically, the dashcam audio and video recording of the entire encounter and CHP's subsequent section 851.6 Detention Certificate -- and are the subject of the related actions identified above.

14. On November 1, 2024, at approximately 0045 hours, CHP Officers Santiago Meza-Gonzalez (#023295) and Jose Melano (#023054) stopped Plaintiff on Interstate 580 East in Livermore, Alameda County. Plaintiff, a commercial truck driver, had pulled over to rest because he was fatigued.

15. Throughout the encounter, the dashcam recorded that Plaintiff spoke coherently and articulately; correctly identified his location, read distant highway signs, and explained his professional CDL fatigue protocols; and exhibited no objective signs of impairment. Neither officer verbalized detecting any odor of alcohol from Plaintiff at any point. The only odor

discussed was the odor of urine from a cup, which Officer Melano identified as such on the dashcam (00:58:51-00:59:04).

16. Meza-Gonzalez advised Plaintiff that the preliminary alcohol screening test was voluntary ("You're not required to do this," Dashcam 01:10:54). When Plaintiff exercised his lawful right to decline, Meza-Gonzalez immediately placed him under arrest (Dashcam 01:11:15-01:11:33).

17. Meza-Gonzalez then prepared CHP Report No. RJ68845, a sworn law enforcement report, containing four material fabrications conclusively disproven by the dashcam recording: (a) a fabricated claim of "strong distinct odor of an alcoholic beverage" from Plaintiff's breath and person -- never verbalized during the encounter; (b) a false characterization of Plaintiff's speech as "slurred" -- contradicted by coherent, articulate speech throughout; (c) a false claim that Plaintiff "seemed very confused and disoriented" -- contradicted by Plaintiff correctly identifying his location and reading highway signs; and (d) a false entry of "BEVERAGE PRESENT: YES" -- the only liquid found was urine in a cup.

18. These contradictions are not matters of interpretation or professional disagreement. The report asserts an odor of alcohol so "strong" and "distinct" that it permeated the vehicle interior and emanated from Plaintiff's breath -- yet the dashcam audio captures the entire encounter and at no point does either officer verbalize detecting any alcohol odor, even as they discuss other observations in detail. The report calls Plaintiff's speech "slurred" -- yet the dashcam captures him spelling his last name on request, discussing alternator mechanics, and explaining his CDL training in extended, fluent conversation. The report states Plaintiff was "very confused and disoriented" -- yet the dashcam shows him correctly identifying his location as Livermore and reading highway signs approximately 50 yards away. The content of the sworn report cannot be reconciled with the contemporaneous recording.

19. The fabricated report was submitted to a magistrate to obtain Search Warrant No. WAR913372 (approved by Judge A. Sekany at approximately 0234 hours, November 2, 2024). At approximately 0238 hours, phlebotomist Aziza Ghaleb extracted two vials of blood from Plaintiff's right arm at the CHP Dublin Area Office pursuant to the fraudulently obtained warrant.

20. CHP conceded the arrest was unlawful. On or about November 5, 2024, CHP issued a Detention Certificate under Penal Code section 851.6 reclassifying the incident as "a detention only, not an arrest" based on "insufficient grounds for making a criminal complaint." No criminal charges were ever filed.

21. The officers' conduct constitutes, at minimum, the following qualifying criminal activity under 8 U.S.C. section 1101(a)(15)(U)(iii): false imprisonment / unlawful criminal restraint (Cal. Penal Code section 236); felonious assault / battery (Cal. Penal Code section 242); perjury (Cal. Penal Code section 118); and obstruction of justice / fabrication of evidence (Cal. Penal Code section 182).

B. Consequences to Plaintiff

22. As a direct result of the officers' fabricated report, Plaintiff suffered incarceration at Santa Rita Jail for approximately five days; a one-year suspension of his Class A Commercial Driver's License (effective February 20, 2025 through February 19, 2026); loss of employment and wages conservatively estimated at $112,000; and severe emotional distress. These consequences are the subject of the related actions and are referenced here solely as context for the certification request.

C. Plaintiff's Cooperation with Investigative Channels

23. Following the incident, Plaintiff cooperated extensively and affirmatively with every

available investigative channel: (a) Plaintiff filed a formal complaint with CHP regarding the officers' conduct; (b) Plaintiff filed a complaint with the Commission on Peace Officer Standards and Training ("POST"), processed under Case No. PUBLIC-26-000371 and forwarded to CHP on March 23, 2026; (c) On March 26, 2026, Defendant Serrato acknowledged receipt of the complaint by letter, assigning Dublin Area Sergeant Eric Dutra, ID 19981, as the investigator; (d) Plaintiff preserved and produced the complete dashcam transcript, the CHP Report, the Detention Certificate, and all supporting documentation; (e) Plaintiff participated in DMV administrative proceedings; and (f) at no time has Plaintiff refused or failed to provide information or assistance reasonably requested by any law enforcement agency.

24. Under California Penal Code section 679.10(h), these facts create a "rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful" in the investigation or prosecution of the qualifying criminal activity.

D. The Certification Request

25. On April 9, 2026, Plaintiff submitted a formal, comprehensive request for U Nonimmigrant Status Certification to Sergeant Dutra, with a copy to Defendant Serrato. The request included: (a) a completed Form I-918, Supplement B (unsigned, ready for signature); (b) a detailed legal memorandum identifying the qualifying criminal activity and the statutory authority mandating certification; (c) the POST Letter of Acknowledgment; (d) Defendant Serrato's own Complaint Assignment Letter; and (e) supporting exhibits including the dashcam transcript, CHP Report, and Detention Certificate.

26. On April 10, 2026, Lieutenant Gary Paul of CHP Dublin Area confirmed receipt by email: "Your email has been received and your request is under review."

27. California Penal Code section 679.10(j) requires the certifying entity to process a

certification request within 30 days of receipt. The statutory deadline was May 9, 2026.

E. Captain Serrato's Arbitrary Denial

28. On April 20, 2026 -- eleven days after receipt and well before any meaningful review could have occurred -- Defendant Serrato issued a letter denying Plaintiff's certification request. The letter claims that "[a] thorough review of this incident was conducted." That statement is demonstrably false on this record. No thorough review of a submission containing a multi-page legal memorandum, a detailed dashcam transcript with timestamped citations, eight supporting exhibits, and a completed Supplement B form could have been completed in eleven days by an office simultaneously conducting an internal affairs investigation into the same officers. The recitation of a "thorough review" was an official statement that finds no support in the record and that was deployed to create the appearance of compliance with section 679.10 where none existed.

29. The letter's entire substantive analysis, verbatim, states: "Recently, you requested that the California Highway Patrol (CHP) Dublin Area certify your Form I-918 Supplement B, U Nonimmigrant Status Certification, stemming from an incident that occurred on November 1, 2024. A thorough review of this incident was conducted. Unfortunately, this incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code, nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC. Therefore, your request to certify your Form I-918, Supplement B, U Nonimmigrant Status Certification, was denied."

30. Defendant Serrato was not merely aware of the underlying incident -- he was formally put on notice of the specific evidence proving his officers committed qualifying criminal activity. Plaintiff's submission identified the precise dashcam timestamps at which each fabrication is

disproven (00:58:51, 00:59:05, 01:00:41, 01:03:54, 01:11:15). Serrato personally possessed the dashcam recording. He personally possessed the CHP Report containing the fabricated statements. He personally possessed the section 851.6 Detention Certificate conceding insufficient grounds. His denial reflects not a good-faith exercise of judgment but a deliberate refusal to engage with evidence that would require acknowledging his subordinate officers' criminal conduct.

31. The denial is legally deficient in the following material respects:

a. **No engagement with the evidence.** The denial does not address the dashcam recording that disproves the CHP Report. It does not address the section 851.6 Detention Certificate in which CHP itself conceded the arrest lacked probable cause. It does not address the four documented fabrications. The conclusory statement that "a thorough review" was conducted is belied by the absence of any substantive analysis.

b. **No element-by-element analysis.** Section 679.10 requires certification when three elements are met: (1) the petitioner was a victim of qualifying criminal activity; (2) the petitioner possesses information concerning the criminal activity; and (3) the petitioner has been helpful or is likely to be helpful. The denial does not identify which element Serrato found unsatisfied or explain why.

c. **Failure to apply the rebuttable presumption.** Section 679.10(h) creates a rebuttable presumption of helpfulness. The denial neither acknowledges this presumption nor identifies any evidence rebutting it.

d. **Failure to provide specific reasons.** Section 679.10(g) requires "a written explanation of the specific reasons for the denial." A five-sentence boilerplate that does not engage with any evidence does not satisfy this statutory mandate.

e. **Internal contradiction.** CHP's own section 851.6 Detention Certificate concedes the arrest lacked justification -- yet the denial concludes, without explanation, that the officers' conduct does not constitute qualifying criminal activity. These positions are irreconcilable.

f. **Structural conflict of interest.** Serrato was asked to certify that his own subordinate officers committed qualifying crimes. Due process requires a neutral decision-maker. *Withrow v. Larkin*, 421 U.S. 35, 47 (1975).

F. The Absence of Alternative Remedies

32. There is no internal administrative appeal or grievance process under California Penal Code section 679.10 for the denial of a U Visa certification request. USCIS cannot remedy the absence of an executed Form I-918, Supplement B. The denial is a final agency action with no adequate alternative remedy.

FIRST CAUSE OF ACTION

Violation of the Fourteenth Amendment -- Substantive Due Process

(42 U.S.C. section 1983 -- Against Defendant Serrato)

33. Plaintiff incorporates by reference all preceding paragraphs.

34. The Fourteenth Amendment prohibits state actors from depriving persons of liberty or property without due process of law. Where a state creates a statutory framework with mandatory procedures and ascertainable standards, a decision-maker's arbitrary and capricious refusal to apply those standards violates substantive due process. *County of Sacramento v. Lewis*, 523 U.S.

833, 845-46 (1998); *Shanks v. Dressel*, 540 F.3d 1082, 1087 (9th Cir. 2008).

35. California Penal Code section 679.10 creates a comprehensive statutory framework governing U Visa certification. The statute uses mandatory language ("shall"), converting what might otherwise be a discretionary act into a mandatory ministerial duty. When the statutory elements are met and the rebuttable presumption of helpfulness is unrebutted, the certifying official must sign -- section 679.10 leaves no room for unfettered discretion. The statute creates a rebuttable presumption of helpfulness (section 679.10(h)). It requires specific written reasons for denial (section 679.10(g)). It mandates processing within 30 days (section 679.10(j)). The Legislature eliminated the requirement of prosecution, conviction, or pending investigation (section 679.10(k)), and strengthened these obligations through AB 1261 (Stats. 2023, Ch. 679), effective January 1, 2024. These mandatory constraints remove the "unfettered discretion" that ordinarily defeats due process claims and create a legitimate claim of entitlement under the Fourteenth Amendment.

36. Plaintiff possesses a protected liberty interest in the meaningful application of this statutory framework. U Visa certification is a necessary predicate to applying for lawful immigration status, employment authorization, and protection from removal under 8 U.S.C. section 1101(a)(15)(U).

37. Defendant Serrato's April 20, 2026 denial was arbitrary and conscience-shocking in that it: (a) concluded that the officers' conduct did not constitute qualifying criminal activity despite CHP's own dashcam proving the report was fabricated and CHP's own section 851.6 Certificate conceding insufficient grounds; (b) failed to address any of the evidence submitted; (c) failed to identify which statutory element was unsatisfied; (d) failed to apply the rebuttable presumption of helpfulness; (e) failed to provide specific written reasons as required by section 679.10(g); (f) reached a conclusion no rational decision-maker could reach on this record; and (g) was rendered by a structurally biased decision-maker.

38. Under the *Mathews v. Eldridge*, 424 U.S. 319 (1976) balancing test: (a) Plaintiff's private interest is substantial -- U Visa certification is a gateway to lawful status and work authorization; (b) the risk of erroneous deprivation is extreme -- the five-sentence boilerplate engaged with no evidence; and (c) the governmental interest in denying certification is minimal -- the Supplement B is a factual certification, not a visa approval.

39. As a direct and proximate result of Defendant Serrato's violation of Plaintiff's Fourteenth Amendment rights, Plaintiff has been deprived of meaningful access to the U Visa process, causing ongoing uncertainty regarding immigration status, inability to obtain employment authorization and removal protections, and emotional distress.

SECOND CAUSE OF ACTION

Violation of the Fourteenth Amendment -- Procedural Due Process

(42 U.S.C. section 1983 -- Against Defendant Serrato)

40. Plaintiff incorporates by reference all preceding paragraphs.

41. The Fourteenth Amendment's procedural due process protections require, at minimum, that a state actor provide notice and a meaningful opportunity to be heard before depriving a person of a protected liberty or property interest. *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976). Where a state statute creates a legitimate claim of entitlement by constraining official discretion with mandatory language and ascertainable standards, a protected interest arises that may not be extinguished without adequate process. *Goldberg v. Kelly*, 397 U.S. 254, 262 (1970); *Board of Regents v. Roth*, 408 U.S. 564, 577 (1972).

42. California Penal Code section 679.10 constrains the certifying entity's discretion

through mandatory language ("shall"), a rebuttable presumption of helpfulness (section 679.10(h)), and a requirement of specific written reasons for denial (section 679.10(g)). These provisions create a protected interest in receiving a reasoned, individualized certification decision that engages with the evidence and applies the statutory standards. The interest is particularly weighty because certification is the sole gateway to a federal immigration benefit that Plaintiff cannot obtain through any other mechanism.

43. Defendant Serrato deprived Plaintiff of this protected interest without any process whatsoever: (a) no hearing or opportunity to respond before denial; (b) no individualized explanation identifying which statutory element was found unsatisfied; (c) no engagement with any evidence submitted -- the dashcam transcript, the CHP Report, the Detention Certificate, or the legal memorandum; (d) no application of the statutory rebuttable presumption of helpfulness; and (e) no mechanism for administrative review or reconsideration. The denial letter is a five-sentence boilerplate that could have been issued without reading a single page of the submission.

44. The process afforded -- a conclusory form denial with no reasoning, no evidentiary engagement, and no opportunity to respond -- falls far below the minimum the Constitution requires. As a direct and proximate result, Plaintiff has been deprived of meaningful access to the U Visa certification process without constitutionally adequate procedures.

THIRD CAUSE OF ACTION

Violation of the First Amendment -- Retaliation for Protected Petitioning Activity

(42 U.S.C. section 1983 -- Against Defendant Serrato)

45. Plaintiff incorporates by reference all preceding paragraphs.

46. The First Amendment, as applied to the states through the Fourteenth Amendment, protects the right to petition the government for redress of grievances. This protection extends to filing complaints with law enforcement agencies, filing civil lawsuits against government officials, and participating in oversight processes such as POST investigations. *Borough of Duryea v. Guarnieri*, 564 U.S. 379, 387 (2011); *Soranno's Gasco, Inc. v. Morgan Hill Unified Sch. Dist.*, 874 F.2d 1310, 1314 (9th Cir. 1989). To state a retaliation claim, Plaintiff must allege that he engaged in constitutionally protected activity; that Defendant took an adverse action against him; and that the protected activity was a substantial or motivating factor for the adverse action. *Pinard v. Clatskanie Sch. Dist. 6J*, 467 F.3d 755, 770 (9th Cir. 2006).

47. Plaintiff engaged in extensive constitutionally protected activity prior to the April 20, 2026 denial: (a) filing a formal citizen complaint with the California Highway Patrol regarding Officers Meza-Gonzalez and Melano; (b) filing a complaint with the Commission on Peace Officer Standards and Training, docketed as Case No. PUBLIC-26-000371; (c) filing the Alameda County Superior Court tort action (Case No. 26CV168913) on February 4, 2026; (d) filing the Eastern District of California civil rights action (Case No. 2:25-CV-01460-DC-CSK) on May 27, 2025; and (e) submitting the April 9, 2026 certification request itself, which attached the dashcam transcript, the CHP Report, and documented the officers' fabrications in detail.

48. Defendant Serrato had direct, documented knowledge of Plaintiff's protected activity before he issued the denial. Serrato's own letter dated March 26, 2026 expressly acknowledges receipt of Plaintiff's POST/citizen complaint and states that Serrato "assigned Dublin Area Sergeant Eric Dutra, ID 19981, as the assigned investigator." This is not an inference of knowledge -- it is a contemporaneous written admission by Defendant himself. Serrato was therefore personally aware, at minimum, that Plaintiff had filed a complaint targeting his subordinate officers and that an active investigation into his command was underway when Plaintiff submitted the certification request just two weeks later.

49. The following facts, taken together, make a retaliatory motive plausible and, indeed, the most natural explanation for the denial:

a. **Documented knowledge.** Serrato personally acknowledged the protected activity in his March 26, 2026 assignment letter.

b. **Tight temporal proximity.** POST forwarded the complaint to CHP on March 23, 2026. Serrato assigned an investigator on March 26. Plaintiff submitted the certification request on April 9. Serrato denied it on April 20 -- eleven days later -- without any substantive analysis.

c. **Concrete institutional incentive.** Certifying the Supplement B would have required Serrato, as Commander, to officially attest under penalty of perjury that his subordinate officers committed qualifying criminal activity -- including perjury, false imprisonment, and felonious assault -- precisely while CHP was defending those same officers in two pending civil lawsuits. The institutional incentive to deny was not speculative; it was direct, concrete, and obvious on the face of the record.

d. **Pretextual reasoning.** The denial offered no engagement with any evidence, identified no deficient statutory element, and applied no statutory standard. The absence of any legitimate justification supports the inference that the stated reason was pretextual and the actual motivation was retaliatory. *Nieves v. Bartlett*, 587 U.S. 391, 406 (2019) (absence of legitimate basis strengthens inference of retaliatory motive).

e. **Conflict of role.** Serrato simultaneously occupied two incompatible roles -- supervisor of the accused officers and certifier of whether they committed qualifying crimes against Plaintiff. The structural conflict made impartial decision-making impossible and made retaliation the path of least resistance.

50. A reasonable person in Plaintiff's position would be deterred from engaging in further protected activity by Defendant's conduct. The denial communicates that complainants who pursue accountability against CHP officers will be punished through the denial of unrelated statutory benefits within CHP's control.

51. As a direct and proximate result of Defendant Serrato's retaliatory conduct, Plaintiff has been deprived of U Visa certification, suffered ongoing immigration uncertainty, and experienced a chilling effect on his exercise of First Amendment rights.

FOURTH CAUSE OF ACTION

Declaratory Relief (28 U.S.C. sections 2201-2202)

(Against Defendant Serrato in His Official Capacity)

52. Plaintiff incorporates by reference all preceding paragraphs.

53. An actual controversy exists between Plaintiff and Defendant Serrato regarding whether the April 20, 2026 denial complied with constitutional and statutory standards, and whether Plaintiff is entitled to a new certification decision that applies the correct standards to the evidence in CHP's own possession.

54. Plaintiff is entitled to a judicial declaration that: (a) the April 20, 2026 denial violated the Fourteenth Amendment's substantive due process protections by reaching a conclusion no rational decision-maker could reach on this record; (b) the April 20, 2026 denial violated the Fourteenth Amendment's procedural due process protections by depriving Plaintiff of the specific procedural safeguards and protected interests created by California Penal Code section 679.10(g) and (h); (c) the April 20, 2026 denial violated the First Amendment by retaliating against Plaintiff

for protected petitioning activity; (d) Plaintiff possesses a federally protected interest in U Visa certification because the undisputed evidentiary record demonstrates he satisfies the mandatory criteria that give rise to his constitutional entitlement; and (e) Defendant Serrato is required to issue a new certification decision that satisfies the constitutional minimum of reasoned, individualized decision-making or, in the alternative, to execute Form I-918, Supplement B.

QUALIFIED IMMUNITY IS NOT AVAILABLE

55. To the extent Defendant Serrato asserts qualified immunity, it does not apply. The right to non-arbitrary decision-making by state officials exercising mandatory statutory duties is clearly established. *Shanks v. Dressel*, 540 F.3d 1082 (9th Cir. 2008). The right to be free from First Amendment retaliation for petitioning the government is clearly established. *Borough of Duryea v. Guarnieri*, 564 U.S. 379 (2011); *Hartman v. Moore*, 547 U.S. 250 (2006). The specific statutory requirements of California Penal Code section 679.10 -- mandatory certification language, rebuttable presumption, specific-reasons requirement -- gave Defendant fair notice that a boilerplate denial ignoring all evidence and all statutory standards would violate Plaintiff's constitutional rights. An official can be on notice that his conduct violates established law even in novel factual circumstances where the violation is obvious. *Hope v. Pelzer*, 536 U.S. 730, 741 (2002).

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully prays for judgment as follows:

A. Compensatory damages against Defendant Serrato in his individual capacity for the First, Second, and Third Causes of Action, in an amount to be proven at trial;

B. Punitive damages against Defendant Serrato in his individual capacity, in an amount sufficient to punish and deter, based on his deliberate indifference to Plaintiff's constitutional rights, his recitation of a "thorough review" unsupported by the record, and his willful refusal to engage with evidence in his own possession proving that his subordinate officers committed qualifying criminal activity. The punitive award is further justified by the severe and continuing harm Defendant's conduct has inflicted on Plaintiff, including ongoing immigration uncertainty, deprivation of access to lawful work authorization and removal protections, severe emotional distress, anxiety, and the dignitary injury of having a state actor refuse to acknowledge documented criminal misconduct by his own subordinates;

C. A declaratory judgment that Defendant Serrato's April 20, 2026 denial violated the Fourteenth Amendment's Due Process Clause by depriving Plaintiff of the specific procedural safeguards and protected liberty interests mandated by California Penal Code section 679.10(g) and (h);

D. A declaratory judgment that Plaintiff possesses a federally protected interest in U Visa certification because the undisputed evidentiary record demonstrates he satisfies the mandatory statutory criteria of California Penal Code section 679.10;

E. A preliminary injunction requiring Defendant Serrato to preserve all evidence related to the certification request, including the dashcam recording, and to refrain from destroying or altering any such evidence;

F. A permanent injunction vacating the April 20, 2026 denial and ordering Defendant Serrato, in his official capacity, to issue a new certification decision that satisfies the constitutional minimum of reasoned, individualized decision-making within thirty (30) days of entry of judgment, or in the alternative, to execute Form I-918,

Supplement B;

G. In the further alternative, an order remanding the certification request to a neutral, unconflicted certifying official for de novo review consistent with constitutional due process requirements;

H. Retained jurisdiction for twelve (12) months to enforce compliance;

I. Reasonable attorneys' fees and costs pursuant to 42 U.S.C. section 1988(b) and California Code of Civil Procedure section 1021.5;

J. Pre-judgment and post-judgment interest as allowed by law;

K. Such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

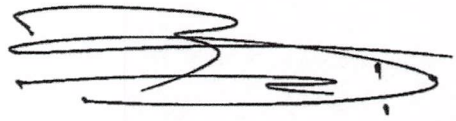
Plaintiff hereby demands a trial by jury on all issues so triable.

VERIFICATION

I, Brendan Ngehsi Newanforbi, am the Plaintiff in this action. I have read the foregoing First Amended Complaint and know its contents. The factual allegations set forth therein are true of my own knowledge, except as to matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: July 13, 2026



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol,

Defendant.

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Case No. 4:26-cv-05953-ASK

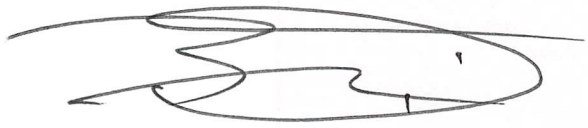
CERTIFICATE OF SERVICE

I, BRENDAN NGEHSI NEWANFORBI, hereby certify that on July 13, 2026, I served a true and correct copy of the following documents on the parties listed below by United States Postal Service Certified Mail, Return Receipt Requested: (1) First Amended Complaint for Damages, Declaratory Relief, and Injunctive Relief; (2) Notice of Related Cases (Civil L.R. 3-12); and (3) Notice of Errata Re First Amended Complaint.

Defendant Captain G. Serrato (Individual and Official Capacity):
Captain G. Serrato, Commander
California Highway Patrol, Dublin Area
4999 Gleason Drive, Dublin, CA 94568
Via USPS Certified Mail, Return Receipt Requested

California Attorney General's Office (Official-Capacity Claims):
Office of the Attorney General
1300 I Street, Suite 125
Sacramento, CA 95814-2919
Via USPS Certified Mail, Return Receipt Requested

Dated: July 13, 2026



BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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Stockton, CA 95204
(209) 801-4442
BNN.CDL@GMAIL.COM